

CASE FILING STATEMENT – Information Only; Not Retained in Case Records

Provide the Case File No. for the record you are filing into or the Case Type if initiating a new action: _____

*A list of case types and party roles can be found on [South Dakota Unified Judicial Attorney forms and Documents](#) webpage.

Social Security Numbers (not Driver's License Numbers) must be provided for divorce, child support, & paternity cases, 42 USC 666(a)(13)(B). All filers are **required** to provide the SSN or DL# for each of **their** participants regardless of the case type. Business entities must provide the EIN number in lieu of SSN or DL#.

INFORMATION FOR PLAINTIFF/PETITIONER/APPLICANT:

Last/Business Name First Name Middle Suffix

Physical Address City State Zip
☐ Check is Same as Mailing

Mailing Address City State Zip

Home Work Cell

Social Security No. Date of Birth Driver's License No. State Employed ID (Business)

Attorney:

Last Name First Name State Bar ID No.

Mailing Address City State Zip

Phone

INFORMATION FOR DEFENDANT/RESPONDENT/MINOR/DECEDENT/PERSON IN NEED OF PROTECTION

Last/Business Name First Name Middle Suffix

Physical Address City State Zip
☐ Check is Same as Mailing

Mailing Address City State Zip

Home Work Cell

Social Security No. Date of Birth Driver's License No. State Employed ID (Business)

Attorney:

Last Name First Name State Bar ID No.

Mailing Address City State Zip

Phone

INSTRUCTIONS AND FORMS ON MOTION FOR EXPUNGEMENT

This form references specific South Dakota Codified Laws (SDCL), and you can find these laws on the South Dakota Legislature website. If you have any legal questions, it is highly recommended that you consult with an attorney. Court staff are unable to provide you with legal advice or assist you in completing this form. For specific questions related to the forms, you can contact the Legal Form Helpline at 1-855-784-0004 or email UJS staff at ujssrlhelp@uj.s.state.sd.us.

To complete these forms, you will need to:

- 1) Complete the Motion for Expungement UJS-391A by:
 - a) Fill in the caption by entering the name of the county you are filing in and listing your name on the line provided as the Petitioner. (The county you file in will be the same county where the arrest record or case is filed in.)
 - b) The case number will be provided to you by the Clerk of Court at the time of filing.
 - c) Fill in the remainder of UJS-391A on the lines provided and select the appropriate basis for the Motion.
 - d) Sign, date, and file with the Clerk of Court along with the Case Filing Statement UJS-232 and pay the \$72 filing fee.
- 2) Complete only the caption of the Admission of Service UJS-391B. The remainder of the form will need to be completed by the States Attorney and/or their office who handled your criminal case.
- 3) Mail a copy of the Motion for Expungement UJS-391A, the partially completed Admission of Service UJS-391B, and a self-addressed stamped envelope to the States Attorney and/or their office who handled your criminal case.
 - a) The States Attorney will need to sign the Admission of Service UJS-391B as proof of service that they received your Motion for Expungement.
- 4) Complete the Statement of Mailing UJS-391C once you have mailed a copy of your Motion for Expungement UJS-391A and Admission of Service UJS-391B to the States Attorney.
- 5) File the Statement of Mailing UJS-391C with the Clerk of Court.
- 6) File the Admission of Service UJS-391B with the Clerk of Court once you receive it back from the States Attorney.

STATE OF SOUTH DAKOTA

IN CIRCUIT COURT

COUNTY OF _____

_____ JUDICIAL CIRCUIT

IN THE MATTER OF THE EXPUNGEMENT
OF RECORDS RELATED TO:

(Name of Applicant for Expungement)
Petitioner.

Case No.: 24-CR-001234

MOTION FOR EXPUNGEMENT

Pursuant to SDCL § 23A-3-27, Petitioner, whose date of birth is _____,
(enter your date of birth)
hereby moves this court for entry of an order expunging the record of the Petitioner's arrest
or ticket, which occurred on _____. The arrest or ticket
(insert the date of your arrest or date you received your ticket)
was for the following charge(s): _____. The
(enter what you were charged with)
criminal docket number is: _____.

The basis for this motion is (check the applicable line):

- ☐ It has been one year from the date of the arrest and no accusatory instrument has
been filed;
- ☐ The prosecuting attorney formally dismissed the entire criminal case on the record AND
(if this option is checked, check one of the options below):
- ☐ It has been more than a year since the formal dismissal; **or**
- ☐ Compelling necessity exists;
- ☐ I was acquitted of all charges at trial on _____.

Dated this _____ day of _____, 20_____.

Petitioner Signature

Petitioner Name

Address

City, State, Zip Code

Phone Number

STATE OF SOUTH DAKOTA

IN CIRCUIT COURT

COUNTY OF _____

_____ JUDICIAL CIRCUIT

IN THE MATTER OF THE EXPUNGEMENT
OF RECORDS RELATED TO:

(Name of Applicant for Expungement)
Petitioner.

Case No.: **24-CR-001234**

ADMISSION OF SERVICE

I, _____, who was or is now the South Dakota States Attorney assigned to the criminal matter involving the above-named Petitioner in criminal case number _____, admit to receiving the Motion for Expungement and will mail this Admission of Service back to the Petitioner in the self-addressed stamped envelope that was provided.

I declare under penalty of perjury under the law of South Dakota that the foregoing is true and correct. Signed on the _____ *day of* _____, _____ *at*
(Date) (Month) (Year)
_____.
(City or other location, and State)

States Attorney Signature

States Attorney Name

States Attorney Address

City, State, Zip Code

Phone Number

STATE OF SOUTH DAKOTA
COUNTY OF _____

IN CIRCUIT COURT
_____ JUDICIAL CIRCUIT

IN THE MATTER OF THE EXPUNGEMENT
OF RECORDS RELATED TO:

(Name of Applicant for Expungement)
Petitioner.

Case No.: 24-CR-001234

STATEMENT OF MAILING

THE UNDERSIGNED, being sworn, state that on this date _____,
I did personally mail, postage prepaid, a true and correct copy of the Motion for
Expungement and Admission of Service in an envelope addressed to:

(State's Attorney Name)

(Street Address)

(City, State, Zip Code)

and mailing, with sufficient postage, in the United States Mail from _____
(City and State)

I declare under penalty of perjury under the law of South Dakota that the foregoing is
true and correct. Signed on the _____ day of _____, _____ at
(Date) (Month) (Year)

(City or other location, and State)

Petitioner Signature

Petitioner Name

Address

City, State, Zip Code

Phone Number

INSTRUCTIONS AND FORM ON WAIVER OF HEARING

This form references specific South Dakota Codified Laws (SDCL), and you can find these laws on the South Dakota Legislature website. If you have any legal questions, it is highly recommended that you consult with an attorney. Court staff are unable to provide you with legal advice or assist you in completing this form. For specific questions related to the forms, you can contact the Legal Form Helpline at 1-855-784-0004 or email UJS staff at ujssrlhelp@uj.s.state.sd.us.

IMPORTANT NOTICE

If you are seeking to waive the hearing on your Motion for Expungement, it will need to be agreed upon by the States Attorney and/or the office who was assigned to your criminal case as well as the victim in your case, if there was one. The defendant of the criminal case, the State's Attorney, and the victim, if there was one, will each need to complete and sign their own waiver.

As the Petitioner you will need to complete this form you will need to:

1. Fill in the caption.
2. Fill in your name on the line provided.
3. Enter your criminal case number.
4. Mark the Petitioner's Box
5. Sign and date.
6. Provide a Waiver of Hearing UJS-392 to the States Attorney and victim, if there was one, for their signature by completing the following:
 - a) Fill in the caption.
 - b) Enter in the case number where prompted.
 - c) Mail a copy to each with a self-addressed stamped envelope.
 - d) File with the Clerk of Court once you receive the document(s) back.

STATE OF SOUTH DAKOTA

IN CIRCUIT COURT

COUNTY OF _____

_____ JUDICIAL CIRCUIT

IN THE MATTER OF THE EXPUNGEMENT
OF RECORDS RELATED TO:

Case No.: _____

(Name of Applicant for Expungement)
Petitioner.

WAIVER OF HEARING

Pursuant to SDCL § 23A-3-29 I, _____, voluntarily waive my
right to a hearing on the Motion for Expungement that was filed regarding criminal
case _____. I am the: (check one)

☐ Petitioner

☐ Prosecutor

☐ Victim

I understand and acknowledge that I have a right to a hearing in this matter. I
further understand that the court may require the filing of affidavits and may
require the taking of evidence as it deems necessary.

I declare under penalty of perjury under the law of South Dakota that the foregoing is
true and correct. Signed on the _____ day of _____, _____ at
_____. (Date) (Month) (Year)
(City or other location, and State)

☐ Petitioner / ☐ Prosecutor / ☐ Victim Signature
(check one)

Printed Name

Address

City, State, Zip Code

Phone Number

INSTRUCTIONS AND FORM ON NOTICE OF HEARING FOR EXPUNGEMENT OF RECORD

This form references specific South Dakota Codified Laws (SDCL), and you can find these laws on the South Dakota Legislature website. If you have any legal questions, it is highly recommended that you consult with an attorney. Court staff are unable to provide you with legal advice or assist you in completing this form. For specific questions related to the forms, you can contact the Legal Form Helpline at 1-855-784-0004 or email UJS staff at ujssrlhelp@uds.state.sd.us.

To complete this form, you will need to:

1. Complete only the caption of the Notice of Hearing UJS-393 and file with the Clerk of Court.
2. Once you receive the Notice of Hearing UJS-393 back, mail a copy to the States Attorney at least 14 days before the hearing is scheduled for.
3. Once the Notice of Hearing UJS-393 has been mailed to the States Attorney, complete the Statement of Mailing UJS-393 and file with the Clerk of Court.

STATE OF SOUTH DAKOTA

IN CIRCUIT COURT

COUNTY OF _____

_____ JUDICIAL CIRCUIT

IN THE MATTER OF THE EXPUNGEMENT
OF RECORDS RELATED TO:

(Name of Applicant for Expungement)
Petitioner.

Case No.: _____

**NOTICE OF HEARING FOR
EXPUNGEMENT OF RECORD**

NOTICE IS HEREBY GIVEN that a Motion for Expungement has been filed by the above-named Petitioner. On the _____ day of _____, 20____, at the hour of _____ : _____ ☐ am/ ☐ pm said motion will be heard by this Court before the Honorable _____, Presiding, at the Courtroom in the _____ County Courthouse, in the city of _____, South Dakota, or as soon thereafter as is convenient for the Court. Pursuant to SDCL § 23A-3-28, the Motion for Expungement shall be served at least fourteen days before the above hearing upon the office of the attorney who prosecuted the crime or violation, or who had authority to prosecute the charge if no accusatory instrument was filed.

Dated the _____ day of _____, 20_____.

Circuit Court Judge/Clerk of Court

ATTEST:

Clerk of Court

By: _____
Deputy Clerk of Court

STATE OF SOUTH DAKOTA

IN CIRCUIT COURT

COUNTY OF _____

_____ JUDICIAL CIRCUIT

IN THE MATTER OF THE EXPUNGEMENT
OF RECORDS RELATED TO:

Case No.: _____

STATEMENT OF MAILING

(Name of Applicant for Expungement)

Petitioner.

THE UNDERSIGNED, being sworn, state that on this date _____

I did personally mail, postage prepaid, a true and correct copy of the Notice of
Hearing on Expungement in an envelope addressed to:

(Name)

(Street Address)

(City, State, Zip Code)

and mailing, with sufficient postage, in the United States Mail from _____
(City and State)

I declare under penalty of perjury under the law of South Dakota that the foregoing is
true and correct. Signed on the _____ day of _____, _____ at
(Date) (Month) (Year)

(City or other location, and State)

Petitioner Signature

Petitioner Name

Address

City, State, Zip Code

Phone Number

COUNTY OF _____

JUDICIAL CIRCUIT

IN THE MATTER OF THE EXPUNGEMENT OF
RECORDS RELATED TO:_____
(Name of Applicant for Expungement)
Petitioner.

Case No.: _____

CRI No.: _____

**ORDER ON MOTION FOR
EXPUNGEMENT**☐

Granted

☐

Denied

The above-entitled matter came before this Court on the Petitioner's Motion for Expungement on the _____ day of _____, 20____.

The Court having reviewed the Petitioner's Motion for Expungement and all evidence presented on said motion, being fully advised in the premises, and otherwise for good cause shown,

FINDS that the Court has jurisdiction over the parties and the subject matter herein; and further

FINDS that the Court is satisfied by clear and convincing evidence that the ends of justice and the best interests of the public as well as the Petitioner or the arrested person will be served by the entry of an order of expungement.

WHEREFORE, IT IS HEREBY ORDERED, pursuant to SDCL § 23A-3-31, that all official records related to the above referenced case, other than the non-public records to be retained by the Division of Criminal Investigation, be sealed along with all records relating to the Petitioner's arrest, detention, indictment, information, trial, and disposition.

Dated this _____ day of _____, 20____.

BY THE COURT:

ATTEST:

Circuit Court Judge_____
Clerk of CourtBy: _____
Deputy Clerk of Court

INSTRUCTIONS ON NOTICE OF ENTRY OF ORDER OF EXPUNGEMENT

This form references specific South Dakota Codified Laws (SDCL), and you can find these laws on the South Dakota Legislature website. If you have any legal questions, it is highly recommended that you consult with an attorney. Court staff are unable to provide you with legal advice or assist you in completing this form. For specific questions related to the forms, you can contact the Legal Form Helpline at 1-855-784-0004 or email UJS staff at ujssrlhelp@uds.state.sd.us.

IMPORTANT NOTICE

Whether or not your request for an expungement on a record of arrest is granted, the Judge will enter an order granting or denying and a Notice of Entry will need to be filed with the Clerk of Court.

To complete this form, you will need to:

1. Complete the caption.
2. Enter the day the Order was signed by the Judge, the name of the Judge who signed the Order, and the County in which it was filed in.
3. Sign and date.
4. Complete page 2, the Statement of Mailing UJS-395.
5. Mail a copy of the Notice of Entry UJS-395 and a copy of the Order on Motion for Expungement UJS-394 to the States Attorney.
6. File the Notice of Entry and the Statement of Mailing UJS-395 with the Clerk of Court.

STATE OF SOUTH DAKOTA

IN CIRCUIT COURT

COUNTY OF _____

_____ JUDICIAL CIRCUIT

IN THE MATTER OF THE EXPUNGEMENT
OF RECORDS RELATED TO:

(Name of Applicant for Expungement)
Petitioner.

Case No.: _____

**NOTICE OF ENTRY OF ORDER FOR
EXPUNGEMENT**

PLEASE TAKE NOTICE that pursuant to SDCL § 23A-3-30, the Order on Motion for Expungement was entered in the above-entitled matter on the ____ day of _____, 20____, by the Honorable _____ and duly filed by the _____ County South Dakota Clerk of Courts. A copy of said Order of Expungement is attached hereto and served upon the office of the prosecuting attorney.

Dated this ____ day of _____, 20 ____.

Petitioner Signature

Petitioner Name

Address

City, State, Zip Code

Phone Number

STATEMENT OF MAILING

I, _____ (full legal name of Petitioner), being sworn, state that on the _____ day of _____, 20____, I served a copy of the Order on Motion for Expungement and a copy of the Notice of Entry of Order on Motion for Expungement by placing a true and correct copy of the document in an envelope addressed to the following named individual: _____ at the following mailing address: _____ in the City of _____, State of _____, Zip Code _____ and depositing the envelope, with sufficient postage, in the United States Mail at (city and state mailed from). _____

I declare under penalty of perjury under the law of South Dakota that the foregoing is true and correct. Signed on the _____ day of _____, _____ at _____.
(Date) (Month) (Year)
(City or other location, and State)

Petitioner Signature

Petitioner Name

Address

City, State, Zip Code

Phone Number